

PCU315266 GONZALEZ GARCIA, MARIO vs. GENERAL MOTORS LLC

County: tulare

Division: Civil Law and Motion

Department: 19

Hearing date: 2026-07-28

Motion: Plaintiff's Motion for Attorneys' Fees

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Re: GONZALEZ GARCIA, MARIO vs. GENERAL MOTORS LLC

Case No.: PCU315266

Date: July 28, 2026

Time: 8:30 A.M.

Dept. 19-The Honorable Russell P. Burke

Motion: Plaintiff's Motion for Attorneys' Fees

Tentative Ruling: To grant the motion and award \$8,595 in fees and \$495 in costs

Facts

In this matter, Plaintiff purchased a 2019 Chevrolet Silverado 1500 vehicle ("Vehicle") which allegedly experienced ongoing problems.

On June 1, 2026, Plaintiff filed this motion for recover of fees in the amount of \$35,692.00 consisting of (1) \$26,897.50 in attorney fees; (2) a 1.3 multiplier enhancement on the attorney fees (or \$8,069.25); and (3) \$725.25 in costs and expenses.

In opposition, Defendant argues the motion is untimely, as the case settled in August 2025, and that the settlement of a case is a "judgment" citing *DeSaulles v. Community Hospital of Monterey Peninsula* (2016) 62 Cal.4th 1140, *Goodstein v. Bank of San Pedro* (1994) 27 Cal.App.4th 899, and *Madrigal v. Hyundai Motor America* (2023) 90 Cal.App.5th 385.

Further, Defendant argues excessive hours incurred, excessive hourly rates and that no multiplier should be awarded. Further, Defendant seeks to strike all claimed costs.

Authority and Analysis

Timing of Motion

Here, no judgment appears to have been entered and therefore this motion appears timely under California Rule of Court 3.1702 stating that a fee motion “must be served and filed within the time for filing a notice of appeal under Rules 8.104 and 8.108 in an unlimited civil case” (Rule 3.1702(b)(1).)

Further, under Rule 8.104(1):

(1) Unless a statute or rules 8.108, 8.702, or 8.712 provides otherwise, a notice of appeal must be filed on or before the earliest of:

(A) 60 days after the superior court clerk serves on the party filing the notice of appeal a document entitled “Notice of Entry” of judgment or a filed-endorsed copy of the judgment, showing the date either was served;

(B) 60 days after the party filing the notice of appeal serves or is served by a party with a document entitled “Notice of Entry” of judgment or a filed-endorsed copy of the judgment, accompanied by proof of service; or

(C) 180 days after entry of judgment.”

However, neither DeSaulles, Goodstein, nor Madrigal discuss the timeliness of a fee motion. Defendant has not cited other authority that indicates for the purposes of an attorneys’ fee motion, settlement starts the time to file.

Carpenter v. Jack in the Box Corp., (2007) 151 Cal.App.4th 454, notes “...the time limits imposed by rules 3.1702 and 8.104 for filing a motion for attorney fees under section 425.16, subdivision (c) do not commence to run until entry of judgment at the conclusion of the litigation.” Absent entry of judgment, the Court finds the motion timely as filed.

Lodestar Calculation

“A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the ‘careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.’” (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) “The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work.” (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

“Under that [lodestar]method, the court ‘tabulates the attorney fee touchstone, or lodestar, by multiplying the number of hours reasonably expended by the reasonable hourly rate prevailing in the community for similar work.’” (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.)” (Marshall, supra, 54 Cal.App.5th at 285.)

Here, Plaintiffs seek to recover for 54.2 total hours by Plaintiff at rates ranging from \$575 to \$250 per hour and to for an award of a .3 multiplier. Additionally, the billing records reflect a \$3,500 “flat rate” for “all communications with the client concerning case facts, legal merits, and the applicability of the Song-Beverly Consumer Warranty Act; the review, analysis, and organization of all client-provided documents and information; preparation, revision, and execution of the attorney-client fee agreement, including the contingency fee arrangement; calculation, analysis, and assessment of the client’s actual, statutory, and potential damages.”

No Multiplier

As to the .3 enhancement sought by Plaintiffs, such an award is based on the following factors:

The novelty and difficulty of the questions involved;

The skill displayed in presenting them;

The extent to which the nature of the litigation precluded other employment by the attorney; and

The contingent nature of the fee award. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

The Court finds Plaintiffs' justification for the multiplier is conclusory and does not set forth an adequate basis to award an enhancement. The Court does not find that the work cited demonstrates such extraordinary skill to justify an enhancement to the award sought. This case settled before trial, and the Court finds that this appears to be a standard Song-Beverly case, with no additional novelty or difficulty of issues evidenced from the supporting papers filed by Plaintiff.

As to the third factor, the Court does not find that Plaintiff's counsel was precluded from accepting other work.

As to the fourth factor, The Court further agree that the "contingent risk" here was minimal given the mandated fee-shifting of attorneys' fees and costs. (Ketchum v. Jones (2001) 24 Cal.4th 1122, 1141-42 [Where attorney fees are mandatory, the "contingent" risk of "establishing eligibility for the award" is not actually contingent and does not warrant an enhancement.].)

The Court will not award an enhancement in this case.

Reasonable Local Rate

"The lodestar calculation begins with a determination of the 'reasonable hourly rate,' i.e., the rate 'prevailing in the community for similar work.' (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.)" (Marshall, supra, 54 Cal.App.5th at 285.) "The general rule is '[t]he relevant "community" is that where the court is located.' (Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc. (2014) 226 Cal.App.4th 26, 71.)" (Marshall, supra, 54 Cal.App.5th at 285.) "The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) "The experienced trial judge is the best judge of the value of professional services rendered in his court." (Id.) Additionally, the determination of the value of the legal services is committed to the discretion of the trial court without necessity of expert testimony. (Cordero-Sacks, v. Housing Authority (2011) 200 Cal App 4th 1267, 1286.)

There is no evidence provided that the \$575 and \$425 rates are the prevailing rates in Tulare County for counsel, where this Court resides. This Court, based upon its experience as to the prevailing rates in Tulare County, sets the hourly rate at \$350 per hour for counsel. Further, the Court will set all paralegal work performed at the rate of \$150 per hour.

Number of Hours Reasonably Expended

Plaintiff's counsel's records indicate 22.7 hours billed by attorneys and 31.5 hours billed by the paralegal.

Although detailed time records are not required, courts have expressed a preference for contemporaneous billing and an explanation of work. (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.) "Of course, the attorney's

testimony must be based on the attorney's personal knowledge of the time spent and fees incurred. (Evid. Code, § 702, subd. (a) [“the testimony of a witness concerning a particular matter is inadmissible unless he has personal knowledge of the matter”].) Still, precise calculations are not required; fair approximations based on personal knowledge will suffice.” (Mardirossian & Associates, Inc. v. Ersoff (2007) 153 Cal.App.4th 257, 269.)

The starting point for the determination as to hours is the attorney's submitted time records. (Horsford v. Board of Trustees of Calif. State Univ. (2005) 132 Cal. App. 4th 359, 395-397—verified time records entitled to credence absent clear indication they are erroneous.)

Plaintiff has the burden of showing that the fees were reasonably necessary to the conduct of the litigation and were reasonable in amount. (Morris v. Hyundai Motor Am. (2019) 41 Cal.App.5th 24, 34, as modified (Oct. 11, 2019), rev. denied (Jan. 2, 2020) [internal quotations and citations omitted].) If the party seeking fees fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, “then the court must take this into account and award attorney fees in a lesser amount.” (Mikhaeilpoor v. BMW of N. Am., LLC (2020) 48 Cal.App.5th 240, 247 [citing Nightingale v. Hyundai Motor Am. (1994) 31 Cal.App.4th 99, 104]; see also Ketchum v. Moses (2001) 24 Cal.4th 1122, 1138 [where prevailing party fails to meet that burden, the court “has broad discretion to adjust the fee downward or deny an unreasonable fee altogether”].)

To start, the Court removes \$3,500 “flat rate charge” which fails to reflect the number of hours incurred. This is precisely the type of “blockbilled” entry that permits the Court to reduce the fee award. (569 East County Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 441.)

Further, Defendant specifically challenges the following entries:

November 19, 2024 – Here, Defendant challenges the 1.9 hours by the paralegal and .7 hours by counsel as to drafting and revising the complaint and related documents. The Court here observes some necessary review by counsel of a paralegal's work and therefore will reduce the paralegal entries by .5 hours. (-.5 as to Paralegal.)

February 11, 2025 – Here, Defendant challenges .7 hours billed by the paralegal to draft and serve the CMC statement. In the Court's view, this time does not appear excessive. No reduction is warranted.

March 7 & 15, 2025 – Here, Defendant challenges the 2.5 hours incurred by the paralegal as to drafting discovery and the 1 hour billed, arguing that the discovery at issue is a template used for other Song Beverly cases and requires minimal modification. The Court will reduce the paralegal entry by 1 hour and the attorney entry by .5 of an hour. (-1 as to Paralegal; -.5 as to Khoubian.)

April 16, 2025 – Here, Defendant challenges the 7.2 attorney hours billed as to reviewing GM's discovery responses and document production, which GM states are the same, or substantially similar, to prior responses served by GM in other cases. The Court will reduce these entries, in total, by 2.2 hours. (-2.2 as to Khoubian.)

April 21 & 22, May 12, 13, 22, & 23, 2025: Here, Defendant challenges a total of 4 hours billed as to meet and confer correspondence, 1 hour as to counsel and 3 hours as to the paralegal. The Court will reduce the paralegal time by 2 hours. (-2 hours as to Paralegal.)

June 15, 2025: Here, Defendant challenges the 1.2 hours by the paralegal and .5 hours by counsel as to the declaration re: an OSC re: mediation. The Court will reduce the paralegal hours by .5 (-.5 as to Paralegal.)

Clerical Tasks – Throughout: Here, GM argues that 3.1 hours billed throughout are for clerical tasks and are non-compensable under Save Our Uniquely Rural Cmty. Env't v. Cnty. of San Bernardino (2015) 235 Cal.App.4th 1179,

1187. However, that case states "...attorneys billed at partner rates for some work that appears, at least, to be clerical, such as preparing binders for a hearing and 'print[ing] each page cited to in all briefs for easy reference during the hearing,' saving the administrative record to a computer, and 'review[ing] and tag[ging] cites to the administrative record.'" (Id.) The Court will not reduce the hours here.

Miscellaneous Correspondence – Throughout: Similarly, GM argues that 19.5 hours should be struck for "excessive miscellaneous correspondence and communications." GM notes many of these are .2 entries which indicate fee padding and that of the 154 entries, 98 related to communication. The Court, noting the number of .2 entries by the paralegal, will reduce the paralegal hours by 4.5. (-4.5 as to Paralegal.)

May 18 & 27, 2026 – Here, GM challenges the 14.5 hours billed, and entered as anticipated, as to the fee motion and review of the award and dismissal of the case. The Court does not award anticipated hours and strikes those entries totaling 5.3. The Court, however, does not find the other entries excessive. (-5.3 as to Khoubian)

As a result, the Court calculates the fees as follows: 14.7 hours at \$350 per hour and 23 hours at \$150 per hour for a total of \$8,595.00.

Costs

The Court notes that attorneys' fees and the multiplier have been included on the memorandum of costs. These fees have been adjudicated above.

Remaining in the memorandum, Plaintiff seeks to recover \$725.25 in costs as to Category No 14 "Fees for electronic filing or service)"

Defendants seek to strike these costs, arguing "Notably, Counsel has provided no further explanation of these costs. There is no Memorandum of Cost Worksheet, just a summary with receipts attached. Counsel's Memorandum of Cost summary is vague and there is no further explanation pursuant to a worksheet provided."

The Court notes \$495 in filing and motion fees, which, although miscategorized, appear compensable. The Court notes the invoices form One Legal reflect these fees, plus additional electronic filing charges.

Code of Civil Procedure Section 1033.5(a)(14) provides that "[f]ees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents" are recoverable. Here, there is no requirement or order regarding electronic filing and therefore these costs are not expressly recoverable.

Therefore, the Court will strike \$230.50 of the costs.

Conclusion

Therefore, the Court grants the motion and awards \$8,595 in fees and \$495 in costs.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.